



SPONSOR: Rep. Griffith & Rep. Bush & Rep. K. Williams &
Sen. Poore
Reps. Bolden, Heffernan, Morrison, Romer, D. Short,
Michael Smith; Sens. Hansen, Hoffner, Lockman,
Mantzavinos, Walsh

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 213

AN ACT TO AMEND TITLE 10 OF THE DELAWARE CODE RELATING TO EVIDENCE AND WITNESSES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 43, Title 10 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 4319A. Victim advocate privilege.

(a) As used in this section:

(1) "Confidential communication" means any information transmitted in confidence between a victim and a
victim advocate in the course of that relationship.

(2) "Crisis services" includes emergency and follow-up intervention services, information services, referral
services, medical advocacy, legal advocacy, or social services advocacy.

(3) "Victim" means:

a. The person identified as the victim of a crime in:

1. A police report.

2. A criminal complaint or warrant.

3. An indictment, information, or other charging instrument.

b. A person seeking assistance because of any of the following, regardless of whether or not the services
are sought within the criminal justice system:

1. Domestic violence.

2. Abuse.

3. Any sexual offense.

4. Abuse by a caregiver.

5. Human Trafficking.

6. Stalking.

(4) "Victim advocate" means an employee, or a volunteer under the supervision of an employee, of a victim services agency that completed a minimum of 20 hours of training in an advocacy course of instruction, as documented by the victim services agency.

(5) "Victim services" includes any of the following:

a. Crisis intervention services, including a crisis hotline.

b. Emergency assistance, which includes food, shelter, housing assistance, clothing, financial assistance, or legal assistance.

c. Orientation to and information about the criminal justice system, including court proceedings.

d. Information about legal rights, protections, and the criminal justice process.

e. Trauma-informed counseling.

f. Advocacy regarding legal protection provided to victims of crime, including legal assistance.

g. Assistance with understanding and completing civil court documents.

h. Assistance with an application to the Victims' Compensation Assistance Program.

i. Assistance with safety planning.

j. Support during any meeting, process, or proceeding necessary as a result of the crime.

(6) "Victim services agency" means a public or private organization that provides victim services.

(b) Unless a report is otherwise required by law, a victim advocate may not reveal any confidential communications made by a victim for the purpose of seeking or receiving victim services, nor may the victim advocate divulge records kept during the course of providing victim services. This privilege does not extend to victim services employees of a law-enforcement agency.

(c) This privilege may be claimed by any of the following:

(1) The victim.

(2) The parent, guardian, or custodian of a victim who is unable to meaningfully understand or participate in the proceedings due to the victim's minority or disability, except when the parent, guardian, or custodian:

a. Is the defendant.

b. Has a relationship with the victim such that the parent, guardian, or custodian has an interest in the outcome of the proceeding that conflicts with the interest of the victim.

(3) The victim advocate, or the person who served as the victim advocate at the time of the confidential communication.

51 (d) The privilege continues even if the victim is unreachable. The privilege terminates upon a written waiver or the
52 death of the victim.

53 (e) The victim advocate privilege under this section does not apply if:

54 (1) The victim expresses an intent to engage in conduct likely to result in imminent death or serious physical
55 injury to the victim or another individual, and the victim advocate reasonably believes that revealing the information is
56 necessary to prevent this harm.

57 (2) The victim advocate is required to make a report under § 903 of Title 16.

58 (f) Any victim advocate who, in good faith, discloses confidential communications under subsection (e) of this
59 section is immune from liability that may result from the disclosure. In any proceeding arising out of a disclosure under this
60 paragraph, the good faith of the victim advocate who made the disclosure is presumed.

SYNOPSIS

This Act provides a privilege to confidential communications between a victim and a victim advocate that cannot yield except where necessary to prevent harm to the victim or another or to report child abuse as required by law. The victim can waive the privilege with a signed waiver. This Act defines a victim advocate as an employee of a victim services agency, or formal volunteer under the supervision of an employee of a victim services agency who has completed a minimum of 20 hours of advocacy training.